

Kiran v. State of U.P. and others

Allahabad High Court · Division Bench · 25 September 2024 · 2024:AHC:156900-DB · WRIT - C No. - 29244 of 2024 · **Writ disposed; petitioner to apply under Clause 4.4 Annexure 4.2; licensee to consider in accordance with law after hearing stakeholders.**

HEADNOTE

An occupier seeking a new connection after the recorded owner's death was not granted a connection on the writ. She was directed to apply as per Annexure 4.2 of Clause 4.4 of the U.P. Electricity Supply Code, 2005 with an indemnity bond; the licensee was to consider that application in accordance with law after hearing persons having stake.

FACTUAL SUMMARY

The petitioner, Kiran, lived with her husband and children in House No. 290, Patel Nagar, Konch, District Jalaun, standing in the name of her father-in-law Rameshwar Prasad Soni, who died on 26 February 2024. She applied on 16 July 2024 for a new electricity connection in her own name and represented again on 23 July 2024. When no connection followed, she sought a mandamus for a new connection and for decision of that representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier new connection on indemnity application

HOLDING

The writ court will not itself grant a new connection to an occupier of premises standing in a deceased recorded owner's name. The applicant must move an application as per Annexure 4.2 of Clause 4.4 of the U.P. Electricity Supply Code, 2005, with the requisite indemnity bond; the licensee shall then consider it in accordance with law after hearing parties having stake. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON MERITS TO A NEW CONNECTION IN HER NAME

The Court only directed a Clause 4.4 Annexure 4.2 application and consideration in accordance with law, without granting or refusing the connection. ¶ 4-6